

Before the
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-23

Marine Transport Logistics, Inc. v. CMA CGM, SA

RESPONDENT'S STATUS REPORT

By Order dated January 31, 2024, the Presiding Officer required that the Parties file a joint status report by February 15, 2024. Unfortunately, the Parties could not reach agreement on language relating to the two subpoenas authorized by the Presiding Officer and served on CIS Development Foundation, Inc. ("CIS"). Accordingly, the Parties will file separate Status Reports.

1. Since the issuance of the Order, the Parties have continued to exchange discovery. CMA CGM, SA ("CMA" or "Respondent") served its Fourth Supplemental Response to Marine Transport Logistics, Inc.'s ("MTL" or "Complainant") Request on February 14, 2024. Complainant served additional responses to Respondent's discovery requests on February 1 and 15, 2024.
2. The Parties conferred with respect to Respondent's Motion for Reconsideration filed on February 14, 2024, and agreed in concept to an extension, but time did not allow for mutual determination of the requested narrowing of Complainant's Request for Documents 6 or the specific time without such narrowing.
3. As noted above, two separate subpoenas were served on CIS – one for depositions and the other for documents. Because CIS failed to respond timely, CMA filed an

enforcement action in the United States District Court for the District of New Jersey. A hearing on enforcement of the subpoena duces tecum and subpoena ad testificandum has been scheduled by the District Court on February 20, 2024. CIS did not respond to the enforcement action or otherwise file anything with the court, which we expect to rule soon, very possibly next week.

Although CIS has agreed to a deposition, currently scheduled for 9:30 on February 16, 2024. CIS has failed to produce any CIS documents in response to the document subpoena. Counsel for MTL and CIS has asserted that he has produced some (few) documents responsive to the subpoena to CIS, but it is apparent that these documents came from MTL, and not from the files of CIS as required by the document subpoena. These documents, even if appropriately sourced, do not begin to cover the range of documents CIS is required to produce, and Counsel's response thus far is only that he may produce more documents, presumably from CIS, at an unspecified time in the future. CMA will accordingly be required to address this matter further in court.

We note that Counsel for MTL is also Counsel for third-party CIS for purposes of the subpoenas. The resultant coordination and commingling of two clients with presumably separate interests raises both practical and ethical concerns, especially if counsel is going to use one client, which is a party, to try to respond for another client, which is not a party but has information relevant to the dispute.

DATED: February 15, 2024

Respectfully submitted,

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ATTORNEYS FOR RESPONDENT

CERTIFICATE OF SERVICE

I hereby certify that on this 15th day of February, 2024 a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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